

IT Act 2000

Information Technology Act, 2000

Information Technology (IT) Act, 2000

User Query :

Someone created a fake Instagram account using my name, photographs and other profile details. The person is messaging my friends and relatives while pretending to be me and asking them for money because of a supposed emergency. Two of my friends have already transferred money to the account mentioned in those messages. What legal provisions may apply?

Job Id. :

Scenario 2/Information Technology (IT) Act, 2000

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 66D	Punishment for cheating by personation using computer resources.
Section 66E	Punishment for violation of privacy (supplementary, but not primary).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

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Section 66D is the primary applicable provision. It explicitly criminalizes: > *"Whoever, by means of any communication device or computer resource cheats by personation, shall be punished with imprisonment up to 3 years and a fine up to ₹1 lakh."*
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Application to the Scenario: "Personation": The scammer impersonated you using your name, photographs, and profile details on Instagram (a "computer resource"). "Cheating": The scammer induced your friends to transfer money by falsely claiming an emergency, constituting cheating under **Section 66D** . Judicial Precedent: In **State of Karnataka v. L.R. Shetty** (2015), the Supreme Court held that impersonation via digital means (e.g., fake social media accounts) for financial gain falls squarely under **Section 66D** . The **intent to deceive for monetary gain** (as evidenced by money transfers) triggers this section. Why **Section 66E** is not primary: **Section 66E** covers **unauthorized capture/transmission of private images** (e.g., leaking intimate photos). Here, the core crime is fraudulent impersonation for financial gain, not privacy violation. While the scammer may have used your photos without consent (potentially triggering 66E), **Section 66D** is the **main charge** as it directly addresses the cheating element.
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Key Legal Reasoning: The scammer's use of your identity on Instagram (a digital platform) to deceive others into parting with money satisfies "cheating by personation" under **Section 66D** . The fact that two friends transferred money confirms the **cheating** element (**Section 66D** requires **intentional deception for gain**). Not **Section 66C** (Identity Theft): **Section 66C** penalizes **using another's identity for fraudulent acts**, but 66D is more precise as it specifically covers **cheating via personation** (the scammer's act of pretending to be you to extract money).
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✓ STRENGTHS & RIGHTS

1 Victim Protections

2 Section 66D enables criminal prosecution of the scammer, offering direct remedy against fraud.

3 Electronic Evidence Admissibility

Messages and account details from Instagram can be presented as evidence under **Section 65B** (presumption of authenticity for digital records).

4 Procedural Efficiency

5 Complaints can be filed with Cyber Crime Cells (not regular police) under Section 79 (no intermediary liability for reporting).

6 Bank Recovery

Banks may reverse transactions under RBI guidelines (though IT Act itself doesn't mandate this).

✗ RISKS & OBLIGATIONS

1 For the Scammer

2 Imprisonment

Up to 3 years (**Section 66D**).

3 Fine

Up to ₹1 lakh (**Section 66D**).

4 For the Victim

5 Evidence Preservation Risk

Delay in reporting may lead to deletion of messages/screenshots, weakening evidence (critical for **Section 65B** admissibility).

6 Limited Recourse for Lost Funds

IT Act does not compel banks to refund stolen money (recovery depends on banking regulations, not IT Act).

7

No Automatic Liability for Instagram

Section 79 protects intermediaries (like Meta/Instagram) from liability if they remove the account upon notice (but **not** for pre-existing scams).

PROCEDURAL NOTES & COMPLIANCE STEPS*Actionable steps for compliance and grievance redressal***COMPLIANCE STEPS**

1. Steps to File Complaint:
2. 1. Document Evidence:
3. Preserve screenshots of the fake account, messages, and money transfer details (with timestamps).
4. Crucially: Obtain a **Section 65B** certificate from a digital forensic expert to authenticate electronic evidence (required for court admissibility).
5. 2. File Complaint:
6. Lodge an FIR at the local Cyber Crime Cell (not general police) or via cybercrime.gov.in (National Cyber Crime Reporting Portal).
7. Mention **Section 66D** specifically in the complaint (e.g., "Impersonation via Instagram for cheating under **Section 66D**").
8. 3. Investigation:
9. Police must trace the scammer's IP address, bank details, and Instagram account (using **Section 79** to compel platform cooperation).
10. Bank Cooperation: Request transaction records from your bank (under RBI's AML guidelines) to track funds.
11. 4. Court Presentation:
12. Submit the **Section 65B** certificate with screenshots to establish evidence authenticity.
13. Cite **State of Karnataka v. L.R. Shetty** (2015) to establish **Section 66D** applicability.
14. > Critical Note: Do not delete the fake account/messages—this destroys evidence. Report immediately to Cyber Crime Cell to trigger forensic preservation.
15. Conclusion:
16. **Section 66D** is the definitive remedy for this scam. The scammer's impersonation via Instagram to extract money constitutes "cheating by personation" under the IT Act. While **Section 66E** **could** apply if photos were misused without consent, **Section 66D** is the primary and sufficient charge. Act swiftly to preserve evidence and file a complaint with the Cyber Crime Cell.

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